

STATE OF NEW YORK

9156--B

2025-2026 Regular Sessions

IN ASSEMBLY

October 17, 2025

Introduced by M. of A. STECK, WALSH, GRIFFIN, HEVESI, BUTTENSCHON, SIMON, GLICK, HYNDMAN, RA, McDONALD, NOVAKHOV, SIMPSON, BROOK-KRASNY, DURSO -- read once and referred to the Committee on Consumer Affairs and Protection -- recommitted to the Committee on Consumer Affairs and Protection in accordance with Assembly Rule 3, sec. 2 -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee -- again reported from said committee with amendments, ordered reprinted as amended and recommitted to said committee

AN ACT to amend the general business law, in relation to prohibiting the sale of 7-hydroxymitragynine products

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

1 Section 1. The general business law is amended by adding a new section
2 392-l to read as follows:

3 § 392-l. Sale of 7-hydroxymitragynine products. 1. For purposes of
4 this section, the term "7-hydroxymitragynine products" shall mean any
5 substance, material, mixture, compound, preparation, extract, or
6 finished goods that contains 7-hydroxymitragynine at a level that
7 exceeds two percent of total alkaloids or one milligram per serving.

8 2. The provisions of this section shall apply to the sale, offer for
9 sale, delivery, or distribution of all 7-hydroxymitragynine products.

10 3. No corporation, partnership, limited liability company, firm,
11 online platform, or any other business entity doing business within this
12 state shall knowingly sell, offer for sale, or deliver 7-hydroxymitragy-
13 nine products.

14 4. Any corporation, partnership, limited liability company, firm,
15 online platform, or other business entity doing business within this
16 state that violates the provisions of this section by knowingly selling,
17 offering for sale, or delivering 7-hydroxymitragynine products shall be
18 subject to a civil penalty of not more than five hundred dollars for a
19 first violation, and one thousand dollars for each subsequent violation,

EXPLANATION--Matter in italics (underscored) is new; matter in brackets
[-] is old law to be omitted.

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1 recoverable in an action by the attorney general of the state of New
2 York. All funds collected or received by the state from civil penalties
3 imposed under this section shall be deposited in the New York state drug
4 treatment and public education fund established pursuant to section
5 ninety-nine-jj of the state finance law.

6 § 2. This act shall take effect on the ninetieth day after it shall
7 have become a law.